BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
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UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **FEDERAL EXPRESS CORPORATION; and DOES 1 through 10, inclusive,** Defendants.	Case No. 2:26-cv-02881-DAD-SCR **PLAINTIFF'S FIRST SET OF REQUESTS FOR ADMISSION TO DEFENDANT FEDERAL EXPRESS CORPORATION** Propounding Party: Plaintiff Responding Party: Defendant Federal Express Corporation Set No.: One (Fed. R. Civ. P. 26, 36) Magistrate Judge: Hon. Sean C. Riordan District Judge: Hon. Dale A. Drozd

PLAINTIFF'S FIRST SET OF REQUESTS FOR ADMISSION TO DEFENDANT FEDERAL EXPRESS CORPORATION

TO DEFENDANT FEDERAL EXPRESS CORPORATION AND ITS ATTORNEY OF RECORD:

Under Federal Rules of Civil Procedure 26 and 36, Plaintiff Brendan Ngehsi Newanforbi requests that Defendant Federal Express Corporation admit the truth of each matter below, in writing, within thirty (30) days after service (plus three days if service is by mail under Rule 6(d)).

Notice under Rule 36(a)(3): each matter is admitted unless, within the time allowed, You serve a written answer or objection addressed to it, signed by You or Your attorney.

INSTRUCTIONS

1. If You do not admit a matter, specifically deny it or state in detail why You cannot truthfully admit or deny it (Rule 36(a)(4)). A denial must fairly respond to the substance of the matter; when good faith requires, specify the part admitted and qualify or deny only the rest.

2. You may assert lack of knowledge or information as a reason for failing to admit or deny only if You state that You have made reasonable inquiry and that the information You know or can readily obtain is insufficient.

3. The Definitions below are the same as those in Plaintiff's First Set of Interrogatories, served with these requests.

DEFINITIONS

1. **"FedEx," "Defendant," "You," and "Your"** mean Defendant Federal Express Corporation and, to the extent it acted for or with Federal Express Corporation in connection with Plaintiff's applications, background screening, or hiring decisions, any parent, subsidiary, or affiliate (including FedEx Ground Package System, Inc. and any unit identified as "FEDEX GROUND HR"), and their officers, employees, agents, and vendors.

2. **"Plaintiff"** means Brendan Ngehsi Newanforbi, including under any variation of that name (for example, Brendan Ngwa Nforbi, Brendan Ngwanforbi, or Ngwa-Nforbi).

3. **"First Advantage"** means First Advantage Background Services Corp. and any affiliate that prepared or furnished a background report about Plaintiff to FedEx.

4. **"Report"** means every consumer report, investigative consumer report, background report, and update or version of one, concerning Plaintiff that First Advantage or any other consumer reporting agency furnished to FedEx, including the report FedEx admits (Answer, ECF No. 4, paragraphs 17, 20, 34) was provided to it on or before March 10, 2025.

5. **"Adverse Action"** means FedEx's decision to deny Plaintiff employment, and to withdraw any conditional offer of employment, in or about March 2025, including the adverse-action notice dated on or about March 19, 2025.

6. **"Registry Information"** means any information identifying Plaintiff as a registered sex offender, from any source, including the California Department of Justice Megan's Law website (Cal. Penal Code § 290.46), the National Sex Offender Public Website (NSOPW), any state registry, or any database compiled from them.

7. **"Prior Employment"** means each period, before January 2025, in which FedEx hired or employed Plaintiff, and each application Plaintiff submitted to FedEx before January 2025.

8. **"Document"** and **"communication"** have the broadest meaning allowed by Fed. R. Civ. P. 34(a)(1)(A), and include electronically stored information such as email, chat and instant messages, applicant-tracking-system records (including Paradox and Workday), portal records, notes, and audit logs.

9. **"Identify,"** for a person, means full name, job title, employer, and last known business address; for a document, its date, author, recipients, type, and Bates number if produced.

10. Unless otherwise stated, the relevant period is January 1, 2024 through the present, except that requests about Prior Employment cover any time.

REQUESTS FOR ADMISSION

REQUEST FOR ADMISSION NO. 1:

Admit that You engaged First Advantage to prepare a background report on Plaintiff in connection with his application for employment with You in 2025.

REQUEST FOR ADMISSION NO. 2:

Admit that the Report provided to You on or before March 10, 2025 identified Plaintiff as a registered sex offender.

REQUEST FOR ADMISSION NO. 3:

Admit that the Report identified the California sex offender registry as the source of the registry record concerning Plaintiff.

REQUEST FOR ADMISSION NO. 4:

Admit that You reviewed the Registry Information in the Report before taking the Adverse Action.

REQUEST FOR ADMISSION NO. 5:

Admit that You considered the Registry Information in deciding to take the Adverse Action.

REQUEST FOR ADMISSION NO. 6:

Admit that the Registry Information was a reason for the Adverse Action.

REQUEST FOR ADMISSION NO. 7:

Admit that You extended Plaintiff a conditional offer of employment before March 10, 2025.

REQUEST FOR ADMISSION NO. 8:

Admit that You withdrew Plaintiff's conditional offer of employment on or about March 19, 2025.

REQUEST FOR ADMISSION NO. 9:

Admit that the adverse-action notice sent to Plaintiff on or about March 19, 2025 referenced the National Sex Offender Public Website.

REQUEST FOR ADMISSION NO. 10:

Admit that the adverse-action notice sent to Plaintiff on or about March 19, 2025 referenced the California sex offender website.

REQUEST FOR ADMISSION NO. 11:

Admit that the adverse-action notice sent to Plaintiff on or about March 19, 2025 did not state that any answer on Plaintiff's application was a reason for the Adverse Action.

REQUEST FOR ADMISSION NO. 12:

Admit that, before March 19, 2025, You did not inform Plaintiff in writing that You believed any answer on his application was false.

REQUEST FOR ADMISSION NO. 13:

Admit that the position for which Plaintiff was considered in 2025 did not involve supervising minors.

REQUEST FOR ADMISSION NO. 14:

Admit that the position for which Plaintiff was considered in 2025 did not involve unsupervised contact with minors.

REQUEST FOR ADMISSION NO. 15:

Admit that the position for which Plaintiff was considered in 2025 did not involve caring for elder or dependent adults.

REQUEST FOR ADMISSION NO. 16:

Admit that, before taking the Adverse Action, You did not identify any specific person at risk whom the Adverse Action was intended to protect.

REQUEST FOR ADMISSION NO. 17:

Admit that no federal, state, or local law required You to conduct a criminal background check for the position for which Plaintiff was considered in 2025.

REQUEST FOR ADMISSION NO. 18:

Admit that no federal, state, or local law required You to search any sex offender registry for the position for which Plaintiff was considered in 2025.

REQUEST FOR ADMISSION NO. 19:

Admit that You employed Plaintiff at least once before January 2025.

REQUEST FOR ADMISSION NO. 20:

Admit that You conducted, or caused First Advantage to conduct, a background check on Plaintiff in connection with at least one period of Prior Employment.

REQUEST FOR ADMISSION NO. 21:

Admit that You hired Plaintiff at least once before January 2025 after receiving a background report about him.

REQUEST FOR ADMISSION NO. 22:

Admit that You did not send Plaintiff a copy of the Report within three business days after You received it.

REQUEST FOR ADMISSION NO. 23:

Admit that You have no written policy, in effect between January 1, 2024 and March 31, 2025, that prohibits using Registry Information in hiring decisions for positions in California.

REQUEST FOR ADMISSION NO. 24:

Admit that You possess personnel, recruiting, or onboarding records for Plaintiff other than those for the application that ended in March 2025.

REQUEST FOR ADMISSION NO. 25:

Admit that Plaintiff's complaint, filed in San Joaquin County Superior Court before removal, demanded a jury trial on all issues.

REQUEST FOR ADMISSION NO. 26:

Admit that Plaintiff has not consented to a trial without a jury in this action.

REQUEST FOR ADMISSION NO. 27:

Admit that, before the Adverse Action, You did not ask Plaintiff to explain or correct any application answer that You now contend was a misrepresentation.

REQUEST FOR ADMISSION NO. 28:

Admit that You possess no document created before March 19, 2025 stating that an answer on Plaintiff's application, standing alone, required rejecting him.

REQUEST FOR ADMISSION NO. 29:

Admit that You first contended that Plaintiff's application contained a material misrepresentation after Plaintiff filed this action.

REQUEST FOR ADMISSION NO. 30:

Admit that no law categorically prohibited You from hiring Plaintiff for the position for which he was considered in 2025.

REQUEST FOR ADMISSION NO. 31:

Admit that the position for which Plaintiff was considered in 2025 did not require him to work directly and in an unaccompanied setting with minor children on more than an incidental and occasional basis.

REQUEST FOR ADMISSION NO. 32:

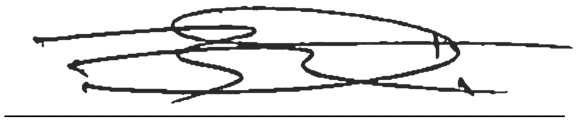
Admit that First Advantage supplied You, with the Report or under its service agreement with You, a notice concerning restrictions on the use of sex offender registry information in employment decisions in California.

REQUEST FOR ADMISSION NO. 33:

Admit that the position for which Plaintiff was considered in 2025 was filled by another person.

Dated: September 25, 2026

Respectfully submitted,



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Propria Persona

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI
Plaintiff

Case Number: 2:26-cv-02881-DAD-SCR

V.

FEDERAL EXPRESS CORPORATION; and
DOES 1 through 10, inclusive
Defendants

PROOF OF SERVICE

/

I hereby certify that on September 25, 2026, I served a copy of the attached

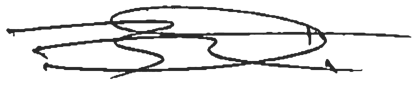
Plaintiff's First Set of Requests for Admission to Defendant FedEx (Set One),

by placing a copy in a postage paid envelope addressed to the person(s) hereinafter listed, by depositing said envelope in the United States Mail at San Jose, California:

(List Name and Address of Each Defendant or Attorney Served)

Allison A. Kray, Esq. (SBN 312544)
Federal Express Corporation
2601 Main Street, Suite 1100
Irvine, CA 92614
allison.kray@fedex.com
Attorney for Defendant Federal Express Corporation

I declare under penalty of perjury that the foregoing is true and correct.



Brendan Ngehsi Newanforbi, In Propria Persona